

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Simon Wang	Team: Squad #10	CCRB Case #: 201701398	☐ Force ☒ Discourt. ☐ U.S. ☐ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Monday, 02/20/2017 11:31 AM	Location of Incident: § 87(2)(b)	18 Mo. SOL 8/20/2018	Precinct: 101
Date/Time CV Reported Wed, 02/22/2017 3:00 PM	CV Reported At: CCRB	How CV Reported: In-person	Date/Time Received at CCRB Wed, 02/22/2017 3:00 PM

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM David Perez	18864	940564	101 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Roberto Napoli	09648	956965	101 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM David Perez	Discourtesy: Police Officer David Perez spoke discourteously to § 87(2)(b)	A . Unsubstantiated

Case Summary

On February 22, 2017, § 87(2)(b) filed the following complaint with the CCRB. On February 20, 2017, at approximately 11:31 a.m., § 87(2)(b) was in her apartment at § 87(2)(b) in Queens, when she engaged in a dispute with her roommate § 87(2)(b). § 87(2)(b)'s boyfriend had allegedly threatened to assault § 87(2)(b). § 87(2)(b) retreated into her bedroom and called 911. § 87(2)(b) was crying and stuttering as she spoke to the 911 operator, though she normally has no speech impediments. PO Roberto Napoli and PO David Perez, both of the 101st Precinct responded to the apartment. PO Perez allegedly said to § 87(2)(b) "Nothing wrong with you. Nothing wrong with you. You're crazy. You're a crazy woman. You're crazy." (**Allegation A**) § 87(2)(b) was crying and stuttering and was unable to speak to the officers. § 87(2)(b) wrote on a piece of paper "I had a stroke once" and showed it to the officers. The officers called an ambulance. When the EMTs arrived, PO Perez and PO Napoli handcuffed § 87(2)(b) and carried her to the ambulance by the arms. § 87(2)(b) was removed to § 87(2)(b). § 87(2)(b) was released from the hospital after the evaluation.

There was no video evidence of this incident.

Mediation, Civil and Criminal Histories

- § 87(2)(b) declined to mediate this incident. § 87(2)(b)
- As of May 31, 2017, there was no notice of claim filed by § 87(2)(b) for this incident (**Board Review 1**).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This is the first CCRB complaint filed by § 87(2)(b) (**Board Review 3**).
- PO Napoli has had one other complaint involving two allegations filed against him in his 2 year tenure at the NYPD. That complaint is still under investigation. § 87(2)(g)
- PO Perez has had three other complaints involving eight allegations filed against him in his 11 year tenure at the NYPD. None of the allegations were substantiated § 87(2)(g)

Witness not Interviewed

- § 87(2)(b) was not interviewed because she was unresponsive to three please-call letters and five call attempts to her home phone.

Findings and Recommendations

Explanation of Subject Officer Identification

§ 87(2)(b) recorded the shield number of the officer who allegedly called her “crazy” as 188864. Shield numbers used by the NYPD have a maximum of five digits and PO Perez’s shield number is 18864. § 87(2)(g)

Allegations not pleaded

- § 87(2)(g)

Allegation A -Discourtesy: Police Officer David Perez spoke discourteously to § 87(2)(b)

§ 87(2)(g) Some minutes after § 87(2)(b) called 911, she heard § 87(2)(b) speaking to unknown individuals outside of her room. § 87(2)(b) later learned that § 87(2)(b) had answered the door for PO Napoli and PO Perez. § 87(2)(b) repeatedly said to the officers, “She’s crazy.” The officers knocked on § 87(2)(b)’s bedroom door. § 87(2)(b) alleged that when she opened the door for the officers, the first thing that PO Perez said to her was, “Nothing wrong with you. Nothing wrong with you. You’re crazy. You’re a crazy woman. You’re crazy.” Though she was stuttering and crying, § 87(2)(b) replied that she was not “crazy,” and PO Perez continued to say to her, “You’re crazy.” § 87(2)(b) also claimed that when the EMTs arrived, one of them immediately began to repeatedly say to her, “When are you going to stop work voodoo? You’re not going stop voodoo.” § 87(2)(b) stated she did not understand what those statements meant.

PO Perez (**Board Review 5**) and PO Napoli (**Board Review 6**) § 87(2)(g) first spoke to § 87(2)(b) who alleged that § 87(2)(b) had sprayed windex into her food. Both officers then spoke to § 87(2)(b) who was holding a spoon in her mouth, stuttering and yelling unintelligibly. Both officers denied that either of them called § 87(2)(b) “crazy” or a “crazy woman.” When § 87(2)(b) wrote that she had a stroke, the officers decided to call for an ambulance to evaluate § 87(2)(b) for possible stroke. The Event Information does not indicate the reason for the request for EMS (**Board Review 7**).

§ 87(2)(g)

§ 87(2)(g) . It is therefore recommended that **Allegation A** be closed as **Unsubstantiated**.

Squad: 10

Investigator:	_____	<u>Simon Wang</u>	_____
	Signature	Print	Date
Squad Leader:	_____	_____	_____
	Title/Signature	Print	Date
Reviewer:	_____	_____	_____
	Title/Signature	Print	Date